



CHAPTER 27.

An Act to regulate the making of arrangements by adoption societies and other persons in connection with the adoption of children ; to provide for the supervision of adopted children by welfare authorities in certain cases ; to restrict the making and receipt of payments in connection with the adoption of children ; to amend section two of the Adoption of Children Act, 1926, and section two of the Adoption of Children (Scotland) Act, 1930 ; and for purposes connected with the matters aforesaid. [13th July 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Adoption Societies.

- 1.—(1) It shall not be lawful on and after the appointed day for any body of persons to make any arrangements for the adoption of a child unless that body is a registered adoption society or a local authority. Restriction on making arrangements for the adoption of children.
- (2) If any person takes any part in the management or control of a body of persons which exists wholly or in part for the purpose of making arrangements for

the adoption of children, and which is not a registered adoption society or a local authority, he shall, on summary conviction, be liable to imprisonment for a term not exceeding six months or to a fine not exceeding two hundred pounds, or to both such imprisonment and such fine.

(3) In any proceedings under this section, proof of things done or of words written, spoken, or published (whether or not in the presence of any party to the proceedings) by any person taking part in the management or control of the body of persons, or in making arrangements for the adoption of children on behalf of the body, shall be admissible as evidence of the purpose for which that body exists.

Registra-
tion of
adoption
societies.

2.—(1) Subject to the following provisions of this Act, where application is made in the prescribed manner by or on behalf of an adoption society to the registration authority for the district in which the administrative centre of the society is situated, and there is furnished therewith the prescribed information relating to the activities of the society, the registration authority shall, on payment by the society of such fee (not exceeding one pound) as may be prescribed, register the society under this Act.

Any question as to where the administrative centre of an adoption society is situated shall be finally determined by the Secretary of State.

(2) A registration authority shall not register an adoption society under this Act unless the authority is satisfied, by such evidence as the authority may reasonably require, that the society is a charitable association.

(3) A registration authority may refuse to register an adoption society under this Act, if it appears to the authority—

- (a) that the activities of the society are not controlled by a committee of members of the society who are responsible to the members of the society; or
- (b) that any person proposed to be employed, or employed, by the society for the purpose of making any arrangements for the adoption of children on behalf of the society is not a fit and proper person to be so employed; or

- (c) that the number of competent persons proposed to be employed, or employed, by the society for the purpose aforesaid is, in the opinion of the authority, insufficient having regard to the extent of the activities of the society in connection with that purpose; or
- (d) that any person taking part in the management or control of the society or any member of the society has been convicted of an offence under this Act or of a breach of any regulations made under this Act.

(4) A registration authority may at any time cancel the registration of an adoption society on any ground which would entitle the authority to refuse an application for the registration of the society, or on the ground that the society is no longer a charitable association, or on the ground that the administrative centre of the society is no longer situated in the district of the authority.

3.—(1) Where a registration authority proposes to refuse an application for registration made to it by or on behalf of an adoption society or to cancel the registration of an adoption society, the registration authority shall give to the society not less than fourteen days' notice in writing of its intention so to do, and every such notice shall state the grounds on which the authority intends to refuse the application or to cancel the registration, as the case may be, and shall contain an intimation that, if within fourteen days after the receipt of the notice the society informs the authority in writing that it desires so to do, the authority will, before refusing the application or cancelling the registration, as the case may be, give to the society an opportunity of causing representations to be made to the authority by or on behalf of the society.

Procedure
and right of
appeal
where regis-
tration
refused or
cancelled.

(2) If the registration authority, after giving to the society an opportunity of causing such representations as aforesaid to be made, decides to refuse the application for registration or to cancel the registration, as the case may be, it shall give to the society notice in writing of its decision.

(3) Any adoption society aggrieved by the refusal of an application for registration, or by the cancellation of its registration, by a registration authority, may appeal to quarter sessions by a notice of appeal given

within twenty-one days after notice in writing of the decision has been given to the society.

42 & 43 Vict.
c. 49.

(4) Section thirty-one of the Summary Jurisdiction Act, 1879 (which relates to appeals from courts of summary jurisdiction to courts of quarter sessions), shall apply in relation to an appeal under this section with the necessary modifications as if the decision of the registration authority were an order of the court of summary jurisdiction.

(5) Where the registration of an adoption society is cancelled by a registration authority, the adoption society shall, for the purposes of this Act, be deemed to be registered under this Act during the period within which an appeal against the cancellation may be brought under this section, and, if such an appeal is brought, until the determination or abandonment of the appeal.

Regulations.

4.—(1) The Secretary of State may make regulations—

(a) for regulating the conduct of negotiations entered into by or on behalf of registered adoption societies with persons having the care and possession of children who are desirous of causing the children to be adopted, and in particular, for securing—

(i) that, where the parent or guardian of a child proposes to place the child at the disposition of the society with a view to the child being adopted, he shall be furnished with a memorandum in the prescribed form explaining, in ordinary language, the effect, in relation to his rights as a parent or guardian, of the making of an adoption order in respect of the child, and calling attention to the provisions of the principal Act and of any rules made thereunder relating to the consent of a parent or guardian to the making of such an order, and to the provisions of this Act relating to the transfer of the care and possession of children to persons resident abroad, and

(ii) that, before so placing the child at the disposition of the society, the parent or

guardian shall sign a document in the prescribed form certifying that he has read and understood the said memorandum;

- (b) for requiring that the case of every child proposed to be delivered by or on behalf of a registered adoption society into the care and possession of an adopter shall be considered by a committee (to be called a "case committee") appointed by the society for the purpose, and consisting of not less than three persons;
 - (c) for prescribing, in the case of every such child as aforesaid, the inquiries which must be made and the reports which must be obtained by the society in relation to the child and the adopter for the purpose of ensuring, so far as may be, the suitability of the child and the adopter respectively, and, in particular, for requiring that a report on the health of the child signed by a duly qualified medical practitioner must be obtained by the society;
 - (d) for securing that no such child shall be delivered into the care and possession of an adopter by or on behalf of the society until the adopter has been interviewed by the case committee or by some person on their behalf, until a representative of the committee has inspected any premises in Great Britain in which the adopter intends that the child should reside permanently, and until the committee have considered the prescribed reports;
 - (e) for requiring a registered adoption society to furnish to the registration authority by which the society was registered, the prescribed accounts and the prescribed information relating to the activities of the society;
 - (f) for making provision for the care and supervision of children who have been placed by their parents or guardians at the disposition of adoption societies;
 - (g) for prescribing anything which by this Act is required or authorised to be prescribed.
- (2) Any person who contravenes or fails to comply with the provisions of a regulation made under this section

shall be liable, on summary conviction, to a fine not exceeding twenty-five pounds and, in the case of a second or subsequent conviction, to a fine not exceeding fifty pounds.

Inspection
of books, &c.
of registered
adoption
societies.

5.—(1) A registration authority may at any time give notice in writing to any registered adoption society which has been registered by the authority under this Act, or to any officer of such a society, requiring that society or officer to produce to the authority such books, accounts and other documents relating to the performance by the society of the function of making arrangements for the adoption of children, as the authority may consider necessary for the exercise of the powers conferred on the authority by subsection (4) of section two of this Act; and any such notice may contain a requirement that any information to be furnished in accordance with the notice shall be verified by statutory declaration.

(2) Any person who fails to comply with the requirements of a notice under this section shall be liable, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine.

Provisions
relating to
arrange-
ments
made by
registered
adoption
societies.

6.—(1) It shall not be lawful for a registered adoption society to place any child for the adoption of whom arrangements are made by the society, in the care and possession—

- (a) of an adopter resident in Great Britain in whose favour an adoption order in respect of the child cannot lawfully be made; or
- (b) of any person resident abroad unless a licence has been granted in respect of the child in accordance with the provisions of section eleven of this Act.

(2) Where arrangements are made by a registered adoption society for the adoption of a child by an adopter resident in Great Britain, no application to the court for an adoption order in respect of the child shall be made by the adopter until the expiration of a period of three months beginning with the date upon which the child is delivered into the care and possession

of the adopter pursuant to the arrangements, and at any time during that period—

(a) the adopter may give notice in writing to the society of his intention not to adopt the child, or

(b) the society may cause notice in writing to be given to the adopter of its intention not to allow the child to remain in the care and possession of the adopter,

and, where a notice is so given, the adopter shall, within seven days of the date on which the notice was given, cause the child to be returned to the society, and the society shall receive the child accordingly.

(3) If, at the expiration of the said period of three months, no notice has been given as aforesaid, the adopter shall within three months from the date upon which that period so expired apply to the court for an adoption order in respect of the child or shall give notice in writing to the society of his intention not to apply for such an order, and, where a notice is so given or where an application for an adoption order in respect of the child is refused by the court, the adopter shall, within seven days of the date on which the notice was given or of the date upon which the application is so refused, as the case may be, cause the child to be returned to the society, and the society shall receive the child accordingly.

(4) Any person who contravenes the provisions of this section shall be liable, on summary conviction, to imprisonment for a term not exceeding six months, or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine, and the court by which the offender is convicted may order any child in respect of whom the offence is committed to be returned to his parents or guardian or to the registered adoption society.

Protection of Adopted Children by Welfare Authorities.

7.—(1) The provisions of this section shall, subject as hereinafter provided, have effect where arrangements for the placing of a child under the age of nine years in the care and possession of a person who is resident in Great Britain and who is not the parent or guardian or a relative of the child are made, and any person not being the parent or guardian of the child, or the person in whose care and possession he is to be placed participates in the making of the arrangements :

Certain
adopted
children to
be super-
vised by
welfare
authorities.

Provided that the said provisions shall not have effect where the person so participating is a registered adoption society or a local authority.

(2) Where the provisions of this section have taken effect in relation to a child, they shall cease to have effect on the child attaining the age of nine years or on the making of an adoption order in respect of the child whichever event first happens.

(3) Not less than seven days before possession is taken pursuant to such arrangements as aforesaid of a child in relation to whom the provisions of this section have effect (hereinafter in this section referred to as an "adopted child"), any person, not being the parent or guardian of the child, or the person in whose care and possession he is to be placed, who participates in the arrangements shall, unless an adoption order has been made in respect of the child upon the application of the person who is to have the care and possession of the child thereunder (hereinafter in this section referred to as an "adopter"), give notice in writing of the arrangements to the welfare authority for the area in which the adopter resides.

(4) The notice required by the last preceding subsection shall state the name and sex of the adopted child, the name and address of the adopter, and the date and place of the child's birth.

(5) Where a child is in the care and possession of an adopter, the adopter shall—

(a) if he changes his residence, give to the welfare authority notice of the change at least seven days before so doing and, where the residence to which he moves is situate in the area of another welfare authority, at least seven days before so moving, give to that welfare authority the like notice as respects the child as is required to be given under subsection (3) of this section, so, however, that where an immediate change of residence is necessitated by any emergency, the provisions of this paragraph shall be deemed to have been complied with if notice is given at any time within forty-eight hours after the change of residence;

(b) if the child dies, within twenty-four hours of the death, give notice in writing thereof to the

welfare authority and to the coroner of the district within which the body of the child lies, and the coroner shall hold an inquest thereon, unless there is produced to him a certificate of a registered medical practitioner certifying that that practitioner has personally attended the child during his last illness, and certifying also the cause of death, and the coroner is satisfied that there is no ground for holding an inquest.

(6) If an adopted child—

- (a) is about to be received or is being kept by any person in any premises which are overcrowded, insanitary or dangerous, or in an environment which is detrimental to the child; or
- (b) is in the care and possession of an adopter who, by reason of old age, infirmity, ill-health, ignorance, negligence, inebriety, immorality or criminal conduct, or for any other reason, is unfit to have care of the child;

a court of summary jurisdiction may, on the application of the welfare authority, make an order for the removal of the child to a place of safety until he can be restored to his parents or guardian, or until other arrangements can be made with respect to him; and, upon proof that there is imminent danger to the health or well-being of the child concerned, a justice (acting, if he deems it necessary *ex parte*) may exercise the like power on the application of a child protection visitor.

An order made under this subsection may be enforced by a child protection visitor; and any person who refuses to comply with such an order upon its being produced, or who obstructs any such visitor in the enforcement of the order, shall be guilty of an offence under this section.

(7) It shall be the duty of child protection visitors to visit and examine adopted children in the care and possession of adopters residing in the area of the welfare authority by which they were appointed to be visitors and the premises in which those children are being kept, and any person who refuses to allow any such visitor to make such a visit or examination as aforesaid shall be guilty of an offence under this section.

If any such visitor is refused admission to any premises in which he has reason to believe that an

adopted child is being kept, he may apply to a justice of the peace, and the justice, if satisfied on sworn information in writing that admission has been refused and that there is reasonable ground for believing that an adopted child is being kept in the premises, may grant a warrant authorising the visitor to enter the premises, and any person who obstructs any visitor acting in pursuance of such a warrant shall be guilty of an offence.

(8) The provisions of subsections (3) to (7) of this section shall not have effect where possession of an adopted child is proposed to be taken, or has been taken—

(a) for a temporary purpose only; or

(b) by a person who has undertaken the nursing and maintenance of the child under Part VII of the Public Health Act, 1936, or Part XIII of the Public Health (London) Act, 1936, or under the provisions of any Act for the relief of the poor, or of any order made under such Act, or a person who undertakes the nursing and maintenance of children boarded out under subsection (3) of section eighty-four of the Children and Young Persons Act, 1933; or

(c) by a registered adoption society, school, hospital, convalescent home, voluntary home within the meaning of the Children and Young Persons Act, 1933, or other similar institution, or an institution, house, or home certified or approved by the Board of Control under the Mental Deficiency Acts, 1913 to 1938, and in which no children under the age of nine years who are not mental defectives within the meaning of those Acts are received;

nor shall the said provisions apply in relation to an adopted child who is a mental defective under care elsewhere than in a certified institution, certified house or approved home, if he is so under care with the consent of the Board of Control under the Mental Deficiency Acts, 1913 to 1938, or if notice with respect to him has been given to the Board in accordance with subsection (2) of section fifty-one of the Mental Deficiency Act, 1913.

(9) If an adopter or any other person, in connection with any arrangements by virtue of which the provisions

26 Geo. 5. &
1 Edw. 8.
c. 49.

26 Geo. 5. &
1 Edw. 8.
c. 50.

23 Geo. 5.
c. 12.

3 & 4 Geo. 5.
c. 28.

of subsections (3) to (7) of this section have effect, gives or agrees to give, or receives or agrees to receive, any remuneration or reward whatsoever, he shall be guilty of an offence.

(10) Any person who fails to comply with the requirements of this section, or who commits an offence under this section, shall be liable on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine, and the court may order any child in respect of whom the offence was committed to be removed to a place of safety, until he can be returned to his parents or guardian, or until other arrangements can be made with respect to him.

(11) For the purposes of this section, a person shall be deemed to participate in the making of arrangements for the placing of a child in the care and possession of another person, if he enters into or makes any agreement or arrangement for, or for facilitating, the placing of the child in the care and possession of that other person, or if he initiates or takes part in any negotiations of which the purpose or effect is the conclusion of any agreement or the making of any arrangements therefor, or if he causes another so to do.

Amendment of principal Act.

8.—(1) The following amendments shall be made in subsection (1) of section two of the principal Act, that is to say :—

Amendment
of 16 & 17
Geo. 5.
c. 29, s. 2.

(a) the following proviso shall be added thereto—

“ Provided that it shall be lawful for the court, if it thinks fit, to make an order—

- (i) notwithstanding that the applicant is less than twenty-five years of age, if the applicant is the mother of the infant; or
- (ii) notwithstanding that the applicant is less than twenty-one years older than the infant, if the applicant and the infant are within the prohibited degrees of consanguinity, or if the application is made by or on behalf of two spouses

jointly and the wife is the mother of the infant or the husband is the putative father of the infant ”;

(b) the proviso to paragraph (b) shall be repealed; and accordingly the said subsection shall have effect as set out in the Schedule to this Act.

(2) The following subsection shall be substituted for subsection (5) of section two of the principal Act, that is to say :—

“ (5) An adoption order shall not be made in favour of any applicant who is not resident in England or Wales and who is not domiciled in England and Wales or in Scotland, or in respect of any infant who is not a British subject and who is not resident in England or Wales.”

Miscellaneous Provisions.

Prohibition
on pay-
ments in
respect of
adoptions
except with
leave of
court.

9.—(1) Subject to the provisions of this Act, it shall not be lawful for any person (not being a local authority) who makes arrangements for the adoption of a child to receive or agree to receive, or to make or agree to make, any payment or reward whatsoever in connection with the making of the arrangements :

Provided that this subsection shall not apply to any payments—

- (a) the receipt or making whereof is sanctioned by the court to which an application for an adoption order in respect of a child is made, or to any agreement, whether entered into before or after the making of the application, with respect to the receipt or making of any such payments as may be so sanctioned;
- (b) made by or on behalf of a registered adoption society in respect of the maintenance of a child which has been placed at the disposition of the society;
- (c) made to a registered adoption society by the parent or guardian of a child or by any other person in respect of the maintenance of the child so long as the child is not in the care and

possession of an adopter, being payments made weekly and at a rate not exceeding such rate as may be prescribed.

(2) Any person who contravenes the provisions of this section shall be liable, on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding two hundred pounds, or to both such imprisonment and such fine.

10.—(1) It shall not be lawful for any advertisement to be published indicating that— Restriction
on adver-
tisements.

- (a) the parent or guardian of a child is desirous of causing the child to be adopted; or
- (b) a person is desirous of adopting a child; or
- (c) any person (not being a registered adoption society or a local authority) is willing to make arrangements for the adoption of a child.

(2) Any person who causes to be published, or knowingly publishes, an advertisement in contravention of the provisions of this section shall be liable, on summary conviction, to a fine not exceeding fifty pounds.

11.—(1) It shall not be lawful for any person, in connection with any arrangements made for the adoption of a child who is a British subject, to permit, or to cause or procure, the care and possession of the child to be transferred to a person who is not a British subject or the guardian or a relative of the child and who is resident abroad. Restriction
on sending
children for
adoption
abroad.

(2) It shall not be lawful for any person, in connection with any such arrangements as aforesaid, to permit or to cause or procure the care and possession of such a child as aforesaid to be transferred to a person who is a British subject resident abroad, and who is not the guardian or a relative of the child, unless a licence has been granted in respect of the child under this section.

(3) A police magistrate may grant a licence in the prescribed form, and subject to such conditions and restrictions as the police magistrate thinks fit, authorising the care and possession of a child for whose adoption arrangements have been made to be transferred to a British subject resident abroad, but no such licence shall be granted unless the police magistrate—

- (a) is satisfied that the application is made by or with the consent of every person or body who

is a parent or guardian of the child in question, or who has the actual custody of the child, or who is liable to contribute to the support of the child;

- (b) is satisfied by a report of a British consular officer or any other person who appears to the police magistrate to be trustworthy, that the person to whom the care and possession of the child is proposed to be transferred is a suitable person to be entrusted therewith, and that the transfer is likely to be for the welfare of the child, due consideration being for this purpose given to the wishes of the child, having regard to the age and understanding of the child :

Provided that the police magistrate may dispense with the consent required by paragraph (a) of this subsection if the police magistrate is satisfied that the person whose consent is to be dispensed with has abandoned or deserted the child or cannot be found or is incapable of giving such consent or, being a person liable to contribute to the support of the child, either has persistently neglected or refused to contribute to such support, or is a person whose consent ought, in the opinion of the magistrate and in all the circumstances of the case, to be dispensed with.

(4) Where a police magistrate grants a licence under this section, he may authorise the making or receipt by any person of any payments in consideration of the transfer of the care and possession of the child in respect of whom the licence is granted and, any person who gives or receives any payments so authorised shall not be deemed to contravene the provisions of section nine of this Act.

(5) The Lord Chancellor may make rules with respect to the application for, and grant of, licences under this section.

(6) Any person who contravenes the provisions of this section shall be liable, on summary conviction, to imprisonment for a term not exceeding six months or to a fine not exceeding fifty pounds or to both such imprisonment and such fine.

(7) In any proceedings under this section, a report by a British consular officer or a deposition made before

a British consular officer and authenticated under the signature of that officer shall, upon proof that the officer or deponent cannot be found in the United Kingdom, be admissible in evidence, and it shall not be necessary to prove the signature or official character of the person who appears to have signed any such report or deposition.

(8) In this section the expression "police magistrate" means one of the following magistrates, that is to say—

- (a) the chief magistrate of the metropolitan police courts; or
- (b) any magistrate of the metropolitan police court in Bow Street; or
- (c) any magistrate of the metropolitan police courts appointed by the Secretary of State to exercise jurisdiction under this section,

and the powers conferred by this section on a police magistrate shall in every case be exercisable by any such magistrate as aforesaid.

12. Where any offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, member of the committee, secretary or other officer of the body, he, as well as the body, shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Offences committed by bodies corporate.

13. Proceedings for any offence under this Act may, in England or Wales, be taken by a registration authority.

Prosecution of offences by registration authorities.

14. Any notice under this Act may be served by post.

Service of notices.

15. This Act shall apply to Scotland subject to the following modifications :—

Application to Scotland.

(a) section three shall have effect as if—

- (i) in subsection (3) for the words "quarter sessions by a notice of appeal given," there were substituted the words "the sheriff "within whose jurisdiction the administrative "centre of the society is situated"; and
- (ii) subsection (4) were omitted.

- (b) references to a justice of the peace shall include a reference to the sheriff; and for any reference to a "county borough" there shall be substituted a reference to a "large burgh" within the meaning of the Local Government (Scotland) Act, 1929;

19 & 20
Geo. 5. c. 25.

- (c) section seven shall have effect as if—

(i) for references to the coroner and to an inquest there were substituted respectively, references to the procurator-fiscal and to an inquiry by him into the cause of death;

(ii) for the reference to Part VII of the Public Health Act, 1936, there were substituted a reference to Part I of the Children and Young Persons (Scotland) Act, 1937;

1 Edw. 8. &
1 Geo. 6.
c. 37.

(iii) for references to the Children and Young Persons Act, 1933, and to section eighty-four thereof, there were substituted references to the Children and Young Persons (Scotland) Act, 1937, and to section eighty-eight thereof;

(iv) for references to the Board of Control and to the Mental Deficiency Acts, 1913 to 1938, there were substituted respectively references to the General Board of Control for Scotland and to the Mental Deficiency and Lunacy (Scotland) Act, 1913; and

3 & 4 Geo. 5.
c. 48.

(v) for the reference to subsection (2) of section fifty-one of the Mental Deficiency Act, 1913, there were substituted a reference to Regulation one hundred and forty-eight of the Mental Deficiency and Lunacy (Scotland) Act (General Board's) Regulations, 1914;

- (d) for section eight there shall be substituted the following section:—

Amendment
of 20 & 21
Geo. 5. c. 37.

" 8. Section two of the principal Act shall have effect as if—

(a) in subsection (1) for the proviso there were substituted the following proviso—

' Provided that it shall be lawful for the court, if it thinks fit, to make an order—

(i) notwithstanding that the applicant is, or in the case of a joint

application both applicants are, under the age of twenty-five years, if the applicant, or one of the applicants, is the mother of the child; or

(ii) notwithstanding that the applicant is, or in the case of a joint application both applicants are, less than twenty-one years older than the child, if the applicant or one or other of the joint applicants and the child are within the prohibited degrees of consanguinity, or if, in the case of a joint application, the wife is the mother, or the husband is the father, of the child.'; and

(b) for subsection (5) there were substituted the following subsection:—

(5) An adoption order shall not be made in favour of any applicant who is not resident in Scotland and who is not domiciled in Scotland or in England and Wales, or in respect of any child who is not a British subject and who is not resident in Scotland";

- (e) in section eleven for references to rules made by the Lord Chancellor and to the police magistrate there shall be substituted, respectively, references to Act of Sederunt and to the sheriff within whose jurisdiction the child in respect of whom the application for a licence is made under this section is resident; and subsection (8) shall not apply;
- (f) expenses incurred under this Act by a local authority shall be defrayed in like manner as expenditure for the relief of the poor;
- (g) for the purposes of any powers or duties which are by this Act conferred or imposed on county councils and on the councils of certain burghs only, all other burghs shall be included within the county;
- (h) "child protection visitor" means any person appointed to be a child protection visitor for the purposes of section two of the Children and

Young Persons (Scotland) Act, 1937, and includes any person authorised under that section to exercise the powers of a child protection visitor;

“local authority” means a county or town council;

“place of safety” has the like meaning as in the Children and Young Persons (Scotland) Act, 1937;

20 & 21
Geo. 5. c. 37.

“the principal Act” means the Adoption of Children (Scotland) Act, 1930;

“welfare authority” means a local authority for the purposes of Part I of the Children and Young Persons (Scotland) Act, 1937.

Interpreta-
tion.

16.—(1) For the purposes of this Act, a person shall be deemed to make arrangements for the adoption of a child if he, not being the parent or guardian of the child, enters into or makes any agreement or arrangement for, or for facilitating, the adoption of the child by any other person, whether the adoption is effected, or is intended to be effected, in pursuance of an adoption order or otherwise, or if he initiates or takes part in any negotiations of which the purpose or effect is the conclusion of any agreement or the making of any arrangement therefor, or if he causes another so to do.

(2) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“abroad” means outside Great Britain;

“adopter” means a person who is proposing to adopt, or who has adopted a child, whether in pursuance of an adoption order or otherwise;

“adoption order” means an adoption order for the purposes of the principal Act and includes an interim order made under section six of that Act;

“adoption society” means a body of persons which performs, either as the whole or as part of its activities, the function of making arrangements for the adoption of children;

“body of persons” means any body of persons, corporate or unincorporate;

“appointed day” means such day as the Secretary of State may by order appoint;

“charitable association” means any body of persons, which—

(a) exists only for the purpose of promoting a charitable, benevolent or philanthropic object, whether or not the object is charitable within the meaning of any rule of law; and

(b) applies the whole of its profits, if any, or other income in promoting the object for which it exists;

“child” means a person under the age of twenty-one years who has never been married;

“child protection visitor” means any person appointed by a welfare authority to be a child protection visitor for the purposes of section two hundred and nine of the Public Health Act, 1936, and includes any person appointed under that section to exercise the powers of a child protection visitor;

“court” means any court having jurisdiction to make adoption orders under the principal Act;

“guardian” in relation to a child, means a person appointed by deed or will in accordance with the provisions of the Guardianship of Infants Acts, 1886 and 1925, or by a court of competent jurisdiction, to be his guardian;

“local authority” means the council of a county, county borough, metropolitan borough, non-county borough, urban district or rural district, and includes the Common Council of the City of London;

“place of safety” has the same meaning as in Part VII of the Public Health Act, 1936;

“prescribed” means prescribed by regulations made by the Secretary of State;

“registered adoption society” means an adoption society registered under this Act;

“registration authority” means the council of any county or county borough;

“relative” means a grandparent, brother, sister, uncle or aunt, whether by consanguinity or

affinity, and in the case of an illegitimate child, a person who would be so related if the child were legitimate;

16 & 17
Geo. 5. c. 29.

“ the principal Act ” means the Adoption of Children Act, 1926;

“ welfare authority ” means a welfare authority for the purposes of Part VII of the Public Health Act, 1936.

(3) In the application of section seven of this Act to the administrative county of London, that section shall have effect subject to the modification that the functions conferred thereby on welfare authorities and on child protection visitors shall be performed respectively by the London County Council and by such persons as may be appointed by that Council to perform the functions of child protection visitors for the purposes of that section.

(4) References in this Act to any other enactment shall be construed as references to that enactment as amended by any subsequent Act including, unless the context otherwise requires, this Act.

Short title,
commence-
ment and
extent.

17.—(1) This Act may be cited as the Adoption of Children (Regulation) Act, 1939.

(2) This Act shall come into operation on the first day of January nineteen hundred and forty.

(3) This Act shall not extend to Northern Ireland.

SCHEDULE.

Section 8.

SUBSECTION (1) OF SECTION TWO OF THE ADOPTION OF CHILDREN ACT, 1926, AS AMENDED BY THIS ACT.

2.—(1) An adoption order shall not be made in any case where—

Restrictions
on making
adoption
orders.

- (a) the applicant is under the age of twenty-five years, or
- (b) the applicant is less than twenty-one years older than the infant in respect of whom the application is made :

Provided that it shall be lawful for the court, if it thinks fit, to make an order—

- (i) notwithstanding that the applicant is less than twenty-five years of age, if the applicant is the mother of the infant; or
- (ii) notwithstanding that the applicant is less than twenty-one years older than the infant, if the applicant and the infant are within the prohibited degrees of consanguinity, or if the application is made by or on behalf of two spouses jointly and the wife is the mother of the infant or the husband is the putative father of the infant.

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FOR

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